

Laboratory Audit of (lab name and lab identifier):ISO/IEC 17025 Cert. identifier: [\[see OCM opening / closing conference form\]](#)Audit/Inspection Date(s): [\[see OCM opening / closing conference form\]](#)OCM Auditor(s)/Inspectors: [\[see OCM opening / closing conference form\]](#)**MRTA § 129. Laboratory testing permits.**

ID	Citation	Does the laboratory comply with this section?	Yes	No	N/A	Notes
This checklist is based on MRTA or the "Cannabis Law" § 129. Laboratory testing permits.						
Laboratory Testing Permits						
1	§ 129 1.	The board shall approve and permit one or more independent cannabis testing laboratories to test medical cannabis, adult-use cannabis and/or cannabinoid hemp or hemp extract.				
2	§ 129 2.	To be permitted as an independent cannabis laboratory, a laboratory must apply to the office, on a form and in a manner prescribed by the office, which may include a reasonable fee, and must demonstrate the following to the satisfaction of the				
3	§ 129 2. (a)	the owners and directors of the laboratory are of good moral character;				
4	§ 129 2. (b)	the laboratory and its staff has the skills, resources and expertise needed to accurately and consistently perform all of the testing required for adult-use cannabis, medical cannabis and/or cannabinoid hemp or hemp extract;				
5	§ 129 2.(c)	the laboratory has in place and will maintain adequate policies, procedures, and facility security to ensure proper: collection, labeling, accessioning, preparation, analysis, result reporting, disposal and storage of adult-use cannabis, and/or medical				
6	§ 129 2. (d)	for the testing of cannabis, the laboratory is physically located in New York state; and				
7	§ 129 2. (e)	the laboratory meets any and all requirements prescribed by this chapter and by the board in regulation.				
8	§ 129 3.	The owner of a laboratory testing permit under this section shall not hold a permit, registration or license in any category of this chapter and shall not have any direct or indirect ownership interest in such registered organization or licensee. No board member, officer, manager, owner, partner, principal stakeholder or member of a registered organization or licensee under this chapter, or such person's immediate family member, shall have an interest or voting rights in any laboratory testing permittee.				
9	§ 129 4.	The board shall require that the permitted laboratory report testing results to the board in a manner, form and timeframe as determined by the office.				
10	§ 129 5.	The board is authorized to promulgate regulations, establishing minimum operating and testing requirements, and requiring permitted laboratories to perform certain tests and services.				
11	§ 129 6.	A laboratory granted a laboratory testing permit under this chapter shall not required to be licensed by the federal drug enforcement agency.				
12	§ 129 7.	The board is authorized to enter into contracts or memoranda of understanding with any other state for the purposes of aligning laboratory testing requirements or establishing best practices in testing of cannabis.				